

PUBLIC SERVICES

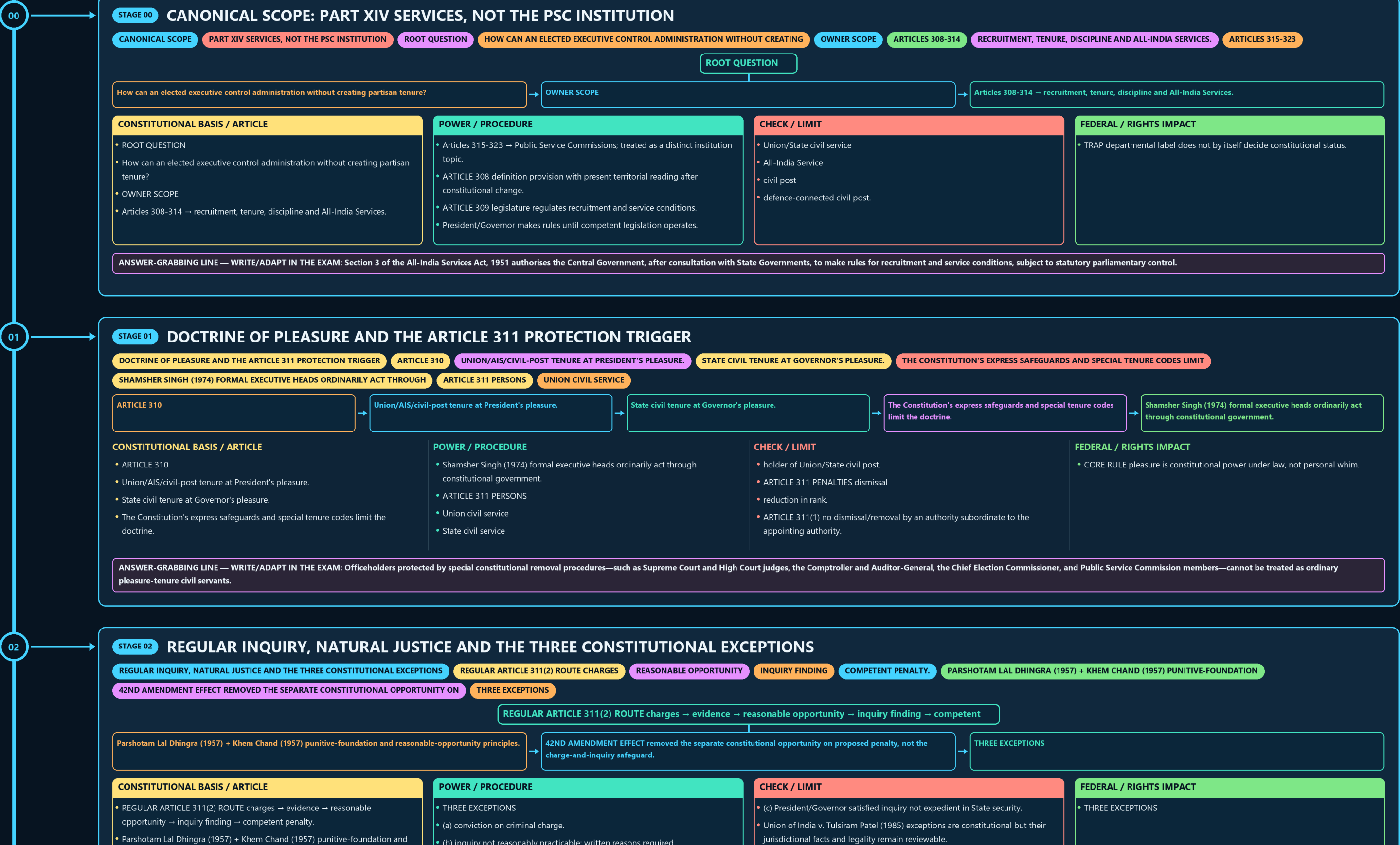
CANONICAL SCOPE: PART XIV → DOCTRINE OF PLEASURE AND → REGULAR INQUIRY, NATURAL JUSTICE → PENALTY, TERMINATION AND EMPLOYMENT-STATUS → ARTICLE 312 AND THE → ARTICLE 335, NEUTRALITY, ANONYMITY

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Officers/holders protected by special constitutional removal procedures—such as Supreme Court and High Court judges, the Comptroller and Auditor-General, the Chief Election Commissioner, and Public Service Commission members—cannot be treated as ordinary pleasure-tenure civil servants.

02

STAGE 02 REGULAR INQUIRY, NATURAL JUSTICE AND THE THREE CONSTITUTIONAL EXCEPTIONS

REGULAR INQUIRY, NATURAL JUSTICE AND THE THREE CONSTITUTIONAL EXCEPTIONS

REGULAR ARTICLE 311(2) ROUTE CHARGES

REASONABLE OPPORTUNITY

INQUIRY FINDING

COMPETENT PENALTY.

PARSHOTAM LAL DHINGRA (1957) + KHEM CHAND (1957) PUNITIVE-FOUNDATION

42ND AMENDMENT EFFECT REMOVED THE SEPARATE CONSTITUTIONAL OPPORTUNITY ON

THREE EXCEPTIONS

REGULAR ARTICLE 311(2) ROUTE charges → evidence → reasonable opportunity → inquiry finding → competent

Parshotam Lal Dhingra (1957) + Khem Chand (1957) punitive-foundation and reasonable-opportunity principles.

42ND AMENDMENT EFFECT removed the separate constitutional opportunity on proposed penalty, not the charge-and-inquiry safeguard.

THREE EXCEPTIONS

CONSTITUTIONAL BASIS / ARTICLE

- REGULAR ARTICLE 311(2) ROUTE charges → evidence → reasonable opportunity → inquiry finding → competent penalty.
- Parshotam Lal Dhingra (1957) + Khem Chand (1957) punitive-foundation and reasonable-opportunity principles.
- 42ND AMENDMENT EFFECT removed the separate constitutional opportunity on proposed penalty, not the charge-and-inquiry safeguard.

POWER / PROCEDURE

- THREE EXCEPTIONS
- (a) conviction on criminal charge.
- (b) inquiry not reasonably practicable; written reasons required.

CHECK / LIMIT

- (c) President/Governor satisfied inquiry not expedient in State security.
- Union of India v. Tulsiram Patel (1985) exceptions are constitutional but their jurisdictional facts and legality remain reviewable.
- ECIL v. B. Karunakar (1993) inquiry-report supply and prejudice analysis strengthen fair disciplinary process.

FEDERAL / RIGHTS IMPACT

- THREE EXCEPTIONS

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Union of India v. Tulsiram Patel (1985) upheld the proviso architecture and explained that natural justice is excluded to the extent the Constitution itself authorises, while the existence and lawful use of the exception remain reviewable.

03

STAGE 03 PENALTY, TERMINATION AND EMPLOYMENT-STATUS DISTINCTIONS

PENALTY, TERMINATION AND EMPLOYMENT-STATUS DISTINCTIONS

PENALTIES DISMISSAL MAY CARRY FUTURE-EMPLOYMENT CONSEQUENCES UNDER RULES.

REMOVAL IS DISTINCT

REDUCTION IN RANK IS PUNITIVE DEMOTION.

TERMINATION SIMPLICITER FORM IS NOT DECISIVE; MOTIVE AND FOUNDATION

OTHER ACTIONS SUSPENSION ORDINARILY INTERIM

COMPULSORY RETIREMENT MAY BE PUNITIVE OR NON-PUNITIVE PROBATION/TEMPORARY EXIT

STATUS SCREEN CIVIL POST

removal is distinct

OTHER ACTIONS suspension ordinarily interim

reduction in rank is punitive demotion.

compulsory retirement may be punitive or non-punitive probation/temporary exit requires the foundation test.

CONSTITUTIONAL BASIS / ARTICLE

- PENALTIES dismissal may carry future-employment consequences under rules.
- removal is distinct
- reduction in rank is punitive demotion.

POWER / PROCEDURE

- TERMINATION SIMPLICITER form is not decisive; motive and foundation determine punitive character.
- OTHER ACTIONS suspension ordinarily interim
- compulsory retirement may be punitive or non-punitive probation/temporary exit requires the foundation test.

CHECK / LIMIT

- STATUS SCREEN civil post → Article 311 may apply.
- constitutional office → special constitutional code first.
- statutory-body/PSU employee → employer, statute and rules control.

FEDERAL / RIGHTS IMPACT

- contractor/outsourced worker → contract, labour law and real-control facts.
- TRAP public employment, office under State and civil post are not interchangeable labels.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 311 protects a person who is a member of a Union civil service, an All-India Service, a State civil service, or who holds a civil post under the Union or a State.

04

STAGE 04 ARTICLE 312 AND THE ALL-INDIA SERVICES FEDERAL BRIDGE

ARTICLE 312 AND THE ALL-INDIA SERVICES FEDERAL BRIDGE

CREATION ROUTE

RAJYA SABHA RESOLUTION BY AT LEAST TWO-THIRDS OF MEMBERS

PARLIAMENT MAY CREATE BY LAW.

EXISTING AIS

INDIAN FOREST SERVICE.

INDIAN FOREIGN SERVICE IS A CENTRAL CIVIL SERVICE, NOT

DUAL CONTROL

CONSTITUTIONAL BASIS / ARTICLE

- CREATION ROUTE
- Rajya Sabha resolution by at least two-thirds of members present and voting that national interest requires one or more new All-India Services
- Parliament may create by law.

POWER / PROCEDURE

- EXISTING AIS
- Indian Forest Service.
- Indian Foreign Service is a Central Civil Service, not AIS.

CHECK / LIMIT

- DUAL CONTROL
- Union recruitment/cadre framework + State posting and field administration
- shared career and deputation system.

FEDERAL / RIGHTS IMPACT

- AIS constitutionally enabled under Article 312; no post below district judge; not established.
- FEDERAL GAIN national standards and integration.
- FEDERAL RISK deputation conflict, centralisation and weak State voice.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Cadre allocation, probation/training, State posting, Central deputation and disciplinary matters are rule-based stages rather than one undifferentiated “Central control”.

05

STAGE 05 ARTICLE 335, NEUTRALITY, ANONYMITY AND PUBLIC-SERVICE ETHICS

ARTICLE 335, NEUTRALITY, ANONYMITY AND PUBLIC-SERVICE ETHICS

ARTICLE 335

SC/ST CLAIMS CONSIDERED CONSISTENTLY WITH ADMINISTRATIVE EFFICIENCY, SUBJECT TO

NEUTRALITY NON-PARTISANSHIP + CONSTITUTIONAL COMMITMENT + CANDID ADVICE +

ANONYMITY MINISTERIAL RESPONSIBILITY PROTECTS ORDINARY INTERNAL ADVICE, BUT RECORDKEEPING

ETHICS STACK INTEGRITY

POLITICAL NEUTRALITY

ACCOUNTABILITY TRACKS DEPARTMENTAL DISCIPLINE

ARTICLE 335

SC/ST claims considered consistently with administrative

NEUTRALITY non-partisanship + constitutional commitment +

ANONYMITY ministerial responsibility protects ordinary internal

ETHICS STACK integrity

05

ARTICLE 312 AND THE ALL-INDIA SERVICES FEDERAL BRIDGE

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06

STAGE 05

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ARTICLE 335

SC/ST claims considered consistently with administrative efficiency, subject to the constitutional proviso on qualifying marks/standards

NEUTRALITY non-partisanship + constitutional commitment + candid advice + lawful implementation.

ANONYMITY ministerial responsibility protects ordinary internal advice, but recordkeeping, courts, RTI law and accountability rules

ETHICS STACK integrity

CONSTITUTIONAL BASIS / ARTICLE

• ARTICLE 335

• SC/ST claims considered consistently with administrative efficiency, subject to the constitutional proviso on qualifying marks/standards for promotion.

• NEUTRALITY non-partisanship + constitutional commitment + candid advice + lawful implementation.

POWER / PROCEDURE

• ANONYMITY ministerial responsibility protects ordinary internal advice, but recordkeeping, courts, RTI law and accountability rules create lawful disclosure

• ETHICS STACK integrity

• political neutrality

CHECK / LIMIT

• ACCOUNTABILITY TRACKS departmental discipline

• criminal law

• legislative/judicial review.

FEDERAL / RIGHTS IMPACT

• LIMIT neutrality is not resistance to lawful elected policy or silence about illegality.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: No fundamental right to strike does not eliminate lawful grievance, representation, association, collective consultation or statutory remedies.

07

STAGE 06

SPECIALISTS, LATERAL ENTRY, TRAINING AND PERFORMANCE MANAGEMENT

SPECIALISTS, LATERAL ENTRY, TRAINING AND PERFORMANCE MANAGEMENT

GENERALIST VALUE COORDINATION, FIELD EXPERIENCE AND WHOLE-OF-GOVERNMENT PERSPECTIVE.

SPECIALIST VALUE TECHNICAL DEPTH, REGULATORY KNOWLEDGE AND DOMAIN CONTINUITY.

LATERAL ENTRY POST-SPECIFIC RECRUITMENT MODE

EQUALITY, RECRUITMENT RULES, UPSC-CONSULTATION QUESTION, RESERVATION, TENURE, CONFLICT AND

MISSION KARMAYOGI COMPETENCY-BASED CAPACITY BUILDING + IGOT LEARNING INFRASTRUCTURE

ROLE MAPPING

CONTINUOUS LEARNING

SPECIALIST VALUE technical depth, regulatory knowledge and domain continuity.

GENERALIST VALUE coordination, field experience and whole-of-government perspective.

LATERAL ENTRY post-specific recruitment mode → equality, recruitment rules, UPSC-consultation question, reservation, tenure, conflict and

be checked.

CONSTITUTIONAL BASIS / ARTICLE

• GENERALIST VALUE coordination, field experience and whole-of-government perspective.

• SPECIALIST VALUE technical depth, regulatory knowledge and domain continuity.

POWER / PROCEDURE

• LATERAL ENTRY post-specific recruitment mode → equality, recruitment rules, UPSC-consultation question, reservation, tenure, conflict and cooling-off controls must

• be checked.

CHECK / LIMIT

• MISSION KARMAYOGI competency-based capacity building + iGOT learning infrastructure

• role mapping → continuous learning → workplace application.

FEDERAL / RIGHTS IMPACT

• PERFORMANCE outcome + legality + process quality + citizen impact + team development.

• LIMIT course completion or short contracts do not themselves prove better administration.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Lateral entry can add specialist capacity, but it does not constitutionally replace UPSC recruitment, All-India Services or regular career administration.

STAGE 07

TRIBUNALS, TRANSFER REFORM AND THE CASE-LAW ACCOUNTABILITY SPINE

TRIBUNALS, TRANSFER REFORM AND THE CASE-LAW ACCOUNTABILITY SPINE

CAT INTERFACE

ARTICLE 323A/ADMINISTRATIVE TRIBUNALS ACT ROUTE FOR COVERED SERVICE DISPUTES.

L. CHANDRA KUMAR (1997) TRIBUNAL DECISIONS REMAIN SUBJECT TO

T.S.R. SUBRAMANIAN (2013)

CIVIL SERVICES BOARDS, TENURE STABILITY AND WRITTEN RECORDING OF

TRANSFER PROBLEM FORMAL ARTICLE 311 SECURITY MAY COEXIST WITH

REFORM PACKAGE STABLE BUT REVIEWABLE TENURE

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
CAT INTERFACE	Civil Services Boards, tenure stability and written recording of oral directions.	merit and domain pathways fair discipline	VERDICT security without accountability breeds insulation; control without security breeds compliance.
Article 323A/Administrative Tribunals Act route for covered service disputes.	TRANSFER PROBLEM formal Article 311 security may coexist with informal pressure through posting control.	protected disclosure	
L. Chandra Kumar (1997) tribunal decisions remain subject to High Court judicial review.	REFORM PACKAGE stable but reviewable tenure	transparent appraisal	
T.S.R. Subramanian (2013)	written orders	reasoned transfers.	

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

PUBLIC SERVICES • TILE 3/4 • same master rows 4687-7921 of 10265 • continues below

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Lateral entry can add specialist capacity, but it does not constitutionally replace UPSC recruitment, All-India Services or regular career administration.

07

STAGE 07 TRIBUNALS, TRANSFER REFORM AND THE CASE-LAW ACCOUNTABILITY SPINE

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CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- CAT INTERFACE - Article 323A/Administrative Tribunals Act route for covered service disputes. L. Chandra Kumar (1997) tribunal decisions remain subject to High Court judicial review. - T.S.R. Subramanian (2013)	- Civil Services Boards, tenure stability and written recording of oral directions. - TRANSFER PROBLEM formal Article 311 security may coexist with informal pressure through posting control. - REFORM PACKAGE stable but reviewable tenure - written orders	- merit and domain pathways fair discipline - protected disclosure - transparent appraisal - reasoned transfers.	VERDICT security without accountability breeds insulation; control without security breeds compliance.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Public-service case law protects fair disciplinary process without converting judicial review into an appeal over evidence, penalty or every probationary termination.

08

STAGE 08 UPSC TRAPS, SUPPORTING PYQ AND QUALIFIED ANSWER SYNTHESIS

UPSC TRAPS, SUPPORTING PYQ AND QUALIFIED ANSWER SYNTHESIS

PRELIMS FIREWALL

ARTICLE 309 LEGISLATURE FIRST

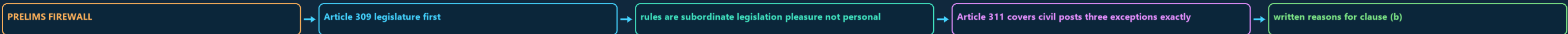
RULES ARE SUBORDINATE LEGISLATION PLEASURE NOT PERSONAL

ARTICLE 311 COVERS CIVIL POSTS THREE EXCEPTIONS EXACTLY

WRITTEN REASONS FOR CLAUSE (B)

STATE SECURITY FOR CLAUSE (C)

RAJYA SABHA GATEWAY FOR AIS



CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- PRELIMS FIREWALL - Article 309 legislature first - rules are subordinate legislation pleasure not personal - Article 311 covers civil posts three exceptions exactly	- written reasons for clause (b) - State security for clause (c) - Rajya Sabha gateway for AIS - IFS not AIS	- AJIS enabled, not established - CAT review survives. - SUPPORTING 2020 GS-II ROUTE institutional quality and civil-service reform for democracy. - MAINS SPINE permanent executive purpose → 309 rules → 310 pleasure	311 fairness/exceptions → AIS federal bridge → Article 335 - neutrality/accountability → capacity and tenure reform. - CONCLUSION professional autonomy is legitimate only inside constitutional responsibility.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The 42nd Amendment removed the constitutional requirement of a separate opportunity to represent against the proposed penalty after the inquiry.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

PART A — CLASSIFICATION OF SERVICES

PART B — CONSTITUTIONAL PROVISIONS (ARTS 308–314)

ALL-INDIA SERVICES (AIS)

IAS, IPS, IFOS (FOREST) — SERVE BOTH CENTRE &

CLASS-I (GROUP A) & CLASS-II (GROUP B)

GAZETTED ; CLASS-III (C) & CLASS-IV (D)

NON-GAZETTED .

OPTIONAL DOCTRINE / CASE

- PART A — CLASSIFICATION OF SERVICES
- PART B — CONSTITUTIONAL PROVISIONS (Arts 308–314)
- All-India Services (AIS): IAS, IPS, IFoS (Forest) — serve both Centre & states by turns; recruited &
- Groups: Class-I (Group A) & Class-II (Group B) = gazetted ; Class-III (C) & Class-IV (D) = non-gazetted .

ADVANCED LIMIT

- ICS → IAS and IP → IPS in 1947; IFoS created in 1966 as the third AIS.
- Up to 33⅓% of senior AIS posts filled by promotion from state services (via a UPSC-chaired selection committee).
- Laxmikant/ARC material supports Citizens' Charters by service-providing departments to state citizen entitlements.
- 2nd ARC's citizen-centric administration report backed the Sevottam model for service standards, grievance redress and delivery enablers.

COMPARATIVE NUANCE

- CAUTION: A Citizens' Charter publicly states services, timelines, standards, grievance channels and responsible officials.
- It is generally non-justiciable unless a separate law/service-guarantee statute makes a promise enforceable.
- Laxmikant links responsive administration to transparency through technology and citizen participation.
- CAUTION: e-Governance is use of ICT to make government services faster, transparent, integrated and citizen-centric.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.